

25STCV24765 25STCV24765

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-07-13

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Case Number: 25STCV24765 Hearing Date: July 13, 2026 Dept: 512

HEARING DATE: Mon., July 13, 2026 JUDGE/DEPT: Judge Mkrtchyan/512

CASE NAME: Mkrtchyan,

et al. v. Uulu COMP FILED: 08-22-25

CASE NUMBER: 25STCV24765

NOTICE: OK

PROCEEDINGS: SECOND

AMENDED MOTION FOR LEAVE TO INTERVENE

MOVING PARTY: Non-Party

Tesla Insurance Services

RESP. PARTY: None

MOTION TO INTERVENE

(CCP § 387)

TENTATIVE RULING:

Non-Party Tesla Insurance Services' unopposed

Second Amended Motion for Leave to Intervene is GRANTED.

The Court schedules an Order to Show

Cause re: Default as to Defendant Rustam Muradbek Uulu for August 19, 2026 at 8:30

a.m. in Department 512 at Stanley Mosk Courthouse.

The

Court schedules Non-Jury Trial for August 16, 2027 at 9:30 a.m. in Department 512 at Stanley Mosk Courthouse.

Final Status Conference is scheduled

for August 6, 2027 at 9:30 a.m. in department 512 of Stanley Mosk Courthouse.

No jury fees have been posted to date

by either party. Parties demanding a jury trial shall post jury fees within 2 weeks from the date of this order, or the right to a jury trial shall be deemed waived.

Parties are ordered to follow

Department 512 courtroom rules for trial preparation and trial documents.

Moving

party is ordered to give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address

(CCP §§ 1013, 1013a) OK

☒ 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None

filed as of July 1, 2026 []

Late ☒ None

REPLY: None

filed as of July 1, 2026 []

Late ☒ None

ANALYSIS:

I.

Background

On August 22, 2025,
Plaintiffs Meri Mkrtchyan and Artyom Aloyan ("Plaintiffs") filed the instant
action against Defendant Rustam Muratbek Uulu ("Defendant") and Does 1-100,
alleging Motor Vehicle and General Negligence causes of action. (Compl., pp. 1,
3.)

On April 17, 2026,
Plaintiffs filed proof of publication showing Defendant was served by
publication.

On May 6, 2026, Non-Party
Tesla Insurance Services ("Tesla") filed a Motion for Leave to Intervene (the "Motion"). On June 4, 2026, Tesla filed
a Reply stating no Opposition to the Motion had been filed.

On June 11, 2026, the
Court continued the hearing on the Motion to allow Tesla to file and serve
supplemental documents addressing the deficiencies noted by the Court or,
alternatively, to file and serve a proposed answer prior to the next scheduled
hearing. (6/11/26 Order.)

On June 15, 2026, Tesla
filed an Amended Motion.

On June 23, 2026, Tesla
filed the instant Second Amended Motion.

On June 29, 2026, the
Court continued the hearing on the Second Amended Motion.

To date, no Opposition to
the Second Amended Motion has been filed.

II.

Legal

Standard

Code of Civil Procedure, section 387,
subdivisions (c) and (d) provide:

(c) A nonparty shall petition the court for leave to intervene by noticed motion or ex parte application. The petition shall include a copy of the proposed complaint in intervention or answer in intervention and set forth the grounds upon which intervention rests.

(d) (1) The court shall, upon timely application, permit a nonparty to intervene in the action or proceeding if either of the following conditions is satisfied:

(A) A provision of law confers an unconditional right to intervene.

(B) The person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless that person's interest is adequately represented by one or more of the existing parties.

(2) The court may, upon timely application, permit a nonparty to intervene in the action or proceeding if the person has an interest in the matter in litigation, or in the success of either of the parties, or an interest against both.

(Code Civ. Proc.,
§ 387, subds. (c), (d).)

Whether the petitioner has an interest in the matter in litigation is a question of fact that must be determined by the court before leave to file is granted. (See *Muller v. Robinson* (1959) 174 Cal.App.2d 511, 515.) The burden rests on the one seeking to intervene to show that this is a proper case for intervention. (*Id.*, at p. 515.)

III.

Discussion

Here, "Tesla is the insurer for Defendant and maintains a direct interest in the litigation against its

insured, including liability for a default judgment against the insured.”

(Second Amended Motion, Kane Decl., ¶ 5.) Further, “[e]fforts to connect with Defendant Uulu have been unsuccessful; Defendant has not contacted Tesla or Tesla’s counsel to participate in this litigation to date.” (Second Amended Motion, Kane Decl., ¶ 5.) Finally, Tesla states that “[i]ntervention will not interfere with the rights of the original parties.” (Second Amended Motion, Kane Decl., ¶ 6.)

Tesla has an interest in the outcome of this action because it insures Defendant and will face direct liability if it is not permitted to intervene. (See *Reliance Ins. Code v. Superior Court* (2000) 84 Cal.App.4th 383, 386 [“An insurer’s right to intervene in an action against the insured, for personal injury or property damage, arises as a result of Insurance Code section 11580. Section 11580 provides that a judgment creditor may proceed directly against any liability insurance covering the defendant, and obtain satisfaction of judgment up to the amount of the policy limits”].) Tesla has been unable to connect with Defendant, which thus necessitated the instant Motion, and such circumstances are permissible grounds on which to grant a motion to intervene. (See *id.*, at p. 387.) Finally, the Motion is timely as default judgment has not yet been entered against Defendant. (See *id.*, at pp. 386-387 [“[W]here the insurer may be subject to a direct action under Insurance Code section 11580 by a judgment creditor who has or will obtain a default judgment in a third party action against the insured, intervention is appropriate”].)

Furthermore, the Second Amended Petition includes a proposed answer in intervention. (See Second Amended Motion, Attach.)

Accordingly, the unopposed Second Amended Motion is GRANTED.

IV.

Conclusion
& Order

For the foregoing reasons, Non-Party Tesla Insurance Services’ unopposed Second Amended Motion for Leave to Intervene is GRANTED.

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